



CHAPTER cxxvii.

An Act to provide for the transfer to the East Devon Electricity Company Limited of the electricity undertaking of the urban district council of Sidmouth to confer further powers on the Company and for other purposes.

A.D. 1930.

[10th July 1930.]

WHEREAS the East Devon Electricity Company Limited (hereinafter called "the Company") were on the fifth day of February nineteen hundred and twenty-nine registered as a company limited by shares under and pursuant to the Companies Acts 1908 to 1917 for the purposes among others of carrying on the business of an electric supply company :

And whereas by the Sidmouth Gas and Electricity Act 1911 the Sidmouth Gas and Electricity Company were incorporated and authorised to carry on a gas undertaking and an electricity undertaking and to supply electricity in the urban district of Sidmouth in the county of Devon and to supply gas in the said urban district and certain parishes adjacent thereto :

And whereas by virtue of the Sidmouth Urban District Council Act 1912 the said gas undertaking and electricity undertaking of the said Sidmouth Gas and Electricity Company were transferred to and vested in the urban district council of Sidmouth (hereinafter referred to as "the council") and the council were thereby

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A.D. 1930. — authorised to supply and are supplying electricity within the urban district of Sidmouth and gas in the said urban district and the parishes aforesaid :

And whereas by the Sidmouth Electricity (Extension) Special Order 1927 the area of the council for the supply of electricity was extended to include parts of the parishes of Salcombe Regis and Sidbury in the rural district of Honiton in the said county of Devon :

And whereas the council have agreed to transfer the said electricity undertaking to the Company on the terms of the agreement set forth in the First Schedule to this Act and it is expedient that the said undertaking be transferred to and vested in the Company accordingly and that the said agreement be confirmed and made binding upon the parties thereto :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title. 1. This Act may be cited as the Sidmouth Electricity Act 1930.

Interpreta- 2. In this Act—
tion. “ the Company ” means the East Devon Electricity Company Limited;
 “ the council ” means the council of the urban district of Sidmouth;
 “ the undertaking ” means the electricity undertaking transferred to the Company by virtue of this Act;
 “ the principal Acts ” means the Electricity (Supply) Acts 1882 to 1928 and the schedule to the Electric Lighting (Clauses) Act 1899 as varied by this Act;

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“ the area of supply ” means the area of supply defined in the section of this Act of which the marginal note is “ Area of supply ” ; A.D. 1930.

“ the scheduled agreement ” means the agreement set forth in the First Schedule to this Act ;

“ the date of transfer ” has the meaning assigned to that expression by the scheduled agreement.

3. This Act shall be deemed a special Act within the meaning of the principal Acts. Application of Electricity (Supply) Acts.

4. The provisions of the schedule to the Electric Lighting (Clauses) Act 1899 as amended by subsequent Acts so far as the same are applicable for the purposes of and are not inconsistent with or varied by the provisions of this Act are incorporated with and form part of this Act except the following provisions (that is to say) :— Incorporation of schedule to Electric Lighting (Clauses) Act 1899.

Sections 4 and 5 section 30 (so far as regards a supply to authorised undertakers) sections 83 and 84 which provisions shall not apply to the undertaking or to the Company in respect thereof :

Provided always that in the application of the said Act to the Company section 20 thereof shall have effect as if after the words “ electric signalling communication ” wherever they occur there were inserted the words “ or electrical control of railways ” and that section 81 thereof shall not apply to any generating station or works on the land described in the Third Schedule to this Act.

5. The area of supply of the Company for electricity purposes under this Act shall be the urban district of Sidmouth and so much of the parishes of Salcombe Regis and Sidbury in the rural district of Honiton as lies to the south and west of an imaginary line commencing at a point where the boundaries of the said urban district and the parish of Sidbury meet near Hollow Head Cross thence proceeding in a straight line in an easterly direction to the north-west corner of the premises known as Boswell and thence proceeding in a straight line in a southerly direction to the low-water mark of ordinary spring tides immediately opposite Chapman's Rocks. Area of supply.

6.—(1) The scheduled agreement is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the Confirmation of scheduled agreement.

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A.D. 1930. — said parties in writing under their respective common seals Provided that no such modification shall be of such a character as to affect the rights or interests of any persons other than the said parties.

(2) The sale of the undertaking shall be carried into effect by a deed which may be in the form set forth in the Second Schedule to this Act or to the like effect or in such other form as may be agreed between the Company and the council and on the execution of the deed by the council and on payment of the consideration therein mentioned the undertaking shall by virtue of the deed and this Act be transferred to and become vested in the Company and the Company may continue maintain and carry on the undertaking.

Powers of council to cease.

7. Subject to the provisions of this Act as from the date of transfer all the powers duties and obligations of the council under the Sidmouth Gas and Electricity Act 1911 the Sidmouth Urban District Council Act 1912 and the Sidmouth Electricity (Extension) Special Order 1927 relative to the undertaking shall cease to be exerciseable by or binding on the council.

Application of moneys by council.

8. The sum payable to the council under the scheduled agreement shall be applied by the council in the discharge of any outstanding mortgages securities debts or liabilities on capital account incurred by them for the purposes of the undertaking and after such discharge shall be applied to such capital purposes as the Minister of Health may approve.

Receipt for consideration money.

9. The receipt in writing of the treasurer of the council for any money paid by the Company to the council in pursuance of this Act shall be a proper and effectual discharge to the Company in respect of the sum which in such receipt shall be acknowledged to have been received and the Company shall not be bound to see to the proper application thereof or be answerable or accountable for the loss misapplication or non-application thereof and if from any cause the Company are unable to obtain such a receipt from the said treasurer for any money due to the council they may pay the same into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to the credit of an account to be opened in the matter of this Act and a receipt

shall be given to the Company by the cashier of the said bank for the money so paid which shall have the same effect as a receipt in writing of the said treasurer. A.D. 1930.
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10. Notwithstanding the transfer to and vesting in the Company of the undertaking the following provisions shall have effect :—

Subsidiary provisions relating to transfer.

- (1) All conveyances deeds leases contracts agreements and other instruments affecting the council in respect of the undertaking and in force at the date of transfer shall (except as in this Act otherwise provided) be read and construed and be as binding and of as full force and effect against or in favour of the Company and may be enforced as fully and effectually as if instead of the council the Company had been a party thereto or bound thereby or entitled to the benefit thereof :
- (2) All books and documents relating to the undertaking which if this Act had not been passed would have been evidence for or against the council shall be evidence to the same extent in respect of the same or the like matter for or against the Company :
- (3) All persons who at the date of transfer have in their possession or under their control any books documents papers moneys or effects forming part of or relating solely to the undertaking shall account for and deliver up the same to the Company or to such persons as the Company may appoint and subject to the same consequences on refusal or neglect as if those persons had become possessed of such books documents papers moneys or effects for the Company :
- (4) Any officer of the Company or other person duly authorised by them in writing under the hand of their secretary shall be entitled at all reasonable times without payment to inspect and take copies of or extracts from any books documents or papers relating to the undertaking and retained in the possession or under the control of the council or of any officer of the council.

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Power to
supply
electricity.

Power to
use lands
and main-
tain gene-
rating
stations.

11. Subject to the provisions of this Act the Company may from time to time after the date of transfer supply electricity for all public and private purposes within the area of supply.

12.—(1) The Company may use for the purposes of the undertaking the land vested in the Company under the powers of this Act and described in the Third Schedule to this Act and may thereon maintain work and use a station or stations for producing generating receiving transforming storing distributing using and supplying electricity with all such buildings engines batteries dynamos accumulators and other plant machinery apparatus works and conveniences as may be necessary or suitable for those purposes and may produce generate receive transform store distribute use and supply such electricity accordingly.

(2) Nothing in this section shall relieve the Company from the necessity for obtaining any consent of the Electricity Commissioners under section 11 of the Electricity (Supply) Act 1919 as amended by section 13 of the Electricity (Supply) Act 1922.

For protec-
tion of
Southern
Railway
Company.

13. The Company shall give to the Southern Railway Company fourteen days' notice in writing of any application to be made by the Company under the provisions of subsection (b) of section 10 of the schedule to the Electric Lighting (Clauses) Act 1899 for the consent of the Minister of Transport to the placing of any electric lines above ground over any street or over or under any bridge owned or repairable by the Southern Railway Company.

Power to
lay electric
mains in
private
streets.

14. The Company may upon the application of the owner or occupier of any premises within the area of supply abutting on or being erected in any street laid out but not dedicated to public use or if so dedicated not repairable by the inhabitants at large supply such premises with electricity and may erect and lay down take up alter relay or renew in across or along such street such mains wires and apparatus as may be requisite or proper for furnishing such supply and the provisions of the principal Acts so far as they are applicable for the purposes of this section shall extend and apply to and for such purposes and to any works constructed or executed by the Company under the powers of this section :

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Provided that the powers of this section shall not be exercised in regard to any street or road belonging to a railway company except with the consent of that company but such consent shall not be unreasonably withheld nor shall the Company in carrying out any works authorised by this section unreasonably obstruct or interfere with the access to any such street or road.

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15. Subject to the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 as incorporated with this Act the Company are specially authorised by this Act to break up the following streets and parts of streets not repairable by the local authority within the area of supply :—

Power to break up streets.

In the parish of Salcombe Regis—

Main road—Sid Road;

Roadways on and approaches to the bridges over the river Sid known as Livonia Bridge and Salcombe Bridge.

In the parish of Sidbury—

Main road—Honiton to Sidmouth Road.

16.—(1) The maximum prices which may be charged by the Company as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 for electricity supplied by them except to public lamps are those stated in the Fourth Schedule to this Act.

Maximum prices.

(2) Nothing in this Act or in the principal Acts shall prevent the Company from making any agreements as provided by this Act and at such prices and on such terms and conditions as may be agreed.

17.—(1) The maximum electrical power with which any consumer shall be entitled to be supplied by the Company shall not include any supply of electricity taken on extraordinary occasions or as a stand-by supply unless such consumer shall pay to the Company such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Company in order to meet the possible maximum demand for his premises the sum so to be paid to be determined in default of agreement by arbitration in the manner provided by section 28 of the Electric Lighting Act 1882.

As to maximum power which may be demanded.

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(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Company under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

Period of
error in
defective
meters.

18.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade or the Minister of Transport used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and in the case of a surcharge shall be recoverable in the like manner as charges for electricity are recoverable by the Company.

Use for
lighting
purposes of
electricity
supplied for
other
purposes.

19.—(1) No consumer to whom electricity is supplied by the Company for power purposes shall without the consent in writing of the Company use such electricity for lighting purposes or suffer it to be so used.

(2) Any consumer who without such consent shall use or suffer to be used for lighting purposes electricity supplied to him by the Company through a meter fixed for the purpose of ascertaining the value of the supply to him of electricity agreed to be supplied to him for power purposes shall be subject to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and shall in addition be liable to pay to the Company at such higher rate as they may be for the time being charging for the supply of electricity for lighting purposes for all or any portion of the electricity which has been supplied to him for power purposes within one year previous to the date when the Company shall sue for any penalty as aforesaid.

(3) Any court having jurisdiction to impose such penalty may and shall on the application of the Company decide for what portion (if any) of such electricity the higher charge as aforesaid shall be payable to the Company.

(4) The provisions of section 18 of the Electric Lighting Act 1909 shall apply to any person whom the Company have reasonable grounds for believing to be acting contrary to the provisions of this section. A.D. 1930.
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(5) In this section the expression " power purposes " includes all purposes to which electricity may be applied other than lighting purposes and " daily penalty " means a penalty for every day on which an offence under this section is continued by a person after conviction.

20. Notwithstanding anything contained in the principal Acts or this Act the Company on the one hand and any authority company body or person to whom the Company are under this Act authorised to supply electricity (other than authorised distributors) on the other hand may enter into and carry into effect vary and rescind contracts or agreements for or with respect to the supply of electricity by the Company to such authority company body or person and at such price and on such terms and conditions as may be agreed and the Company may supply electricity accordingly : Agreements for supply of electricity.

Provided that the Company shall not in making any such contract or agreement show any undue preference to any such authority company body or person.

21. Subject to the provisions of this Act the Company on the one hand and any Government department or person interested in any river stream canal or navigation within the area of supply or any of them on the other hand may from time to time enter into and carry into effect contracts agreements and arrangements for and with respect to the construction laying down alteration maintenance repair and use of electric lines pipes works appliances and apparatus for the purposes of this Act on the bed banks and foreshore of any such river stream canal or navigation. Agreements with Government departments and others.

22. The Company on the one hand and any railway company whose railway or any part thereof is situate within the area of supply on the other hand may enter into and carry into effect agreements for and in relation to the construction laying down alteration maintenance Agreements with railway companies for works.

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A.D. 1930. — repair and use of works and electric lines for the purposes of this Act upon across or affecting railways bridges or other property of any such railway company.

For protec-
tion of
Postmaster-
General.

23. Subsections (4) and (5) of section 22 of the Electricity (Supply) Act 1919 shall so far as applicable extend and apply to any works executed under any contract agreement or arrangement made in pursuance of the sections of this Act the marginal notes of which are respectively "Agreements with Government departments and others" and "Agreements with railway companies for works."

Supply of
electricity
by agree-
ment.

24. A consumer (other than any authorised undertakers) supplied with electricity by the Company under the terms of any agreement shall be deemed to be a person to whom the Company may be and are required to supply electricity within the meaning of section 30 of the schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply to the supply afforded by the Company under such agreement unless the provisions of that section are expressly excluded from application in the agreement and if the Company fail to supply electricity to such consumer they shall not be liable for any damages occasioned to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Company.

Bulk
supplies.

25. The Company on the one hand and any local authority company or person authorised by Act of Parliament or Special or other Order to supply electricity within any area adjoining the area of supply for the time being of the Company on the other hand may with the approval of the Electricity Commissioners enter into and carry into effect agreements for the supply of electricity in bulk by or to the Company to or by such local authority company or person and the provisions of the respective Acts and Orders under which such authority company or person may be empowered to supply electricity shall so far as applicable have effect within the area of supply of such authority company or person for the purposes of a supply to be afforded under this section.

Entry upon
premises.

26.—(1) Any person who shall hinder an officer appointed by the Company from entering any premises

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in pursuance of section 24 of the Electric Lighting Act 1882 or of that section as extended by section 16 of the Electric Lighting Act 1909 or from exercising the powers contained in those sections shall be liable to a penalty not exceeding forty shillings. A.D. 1930.
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(2) Where any premises which the Company or their officers are entitled to enter in pursuance of the said sections or either of them are unoccupied the Company or their officers may after giving not less than forty-eight hours' notice to the owner thereof or if he or his address is unknown to the Company and cannot be ascertained after diligent inquiry after affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

27.—(1) The Company may by agreement (but not otherwise) acquire from any authorised distributors to whom a Provisional Order or a Special or other Order under the principal Acts or any of those Acts shall have been or may be granted relating to a district or place within or partly within or adjoining the area of supply or any area of supply in which the Company are giving or are authorised to give a supply of electricity the undertaking authorised by such Order and the powers rights authorities and privileges of the undertakers thereunder and the undertakers under any such Order which shall have been made or confirmed prior to the passing of this Act may with the approval of the Electricity Commissioners by deed approved by the commissioners (which approval the commissioners are hereby authorised to give) transfer such undertaking powers rights authorities and privileges to the Company subject to such exceptions and modifications (if any) and on such terms and conditions as may be specified in the deed and in the event of the Company so acquiring any such undertaking they shall subject to such modifications and exceptions as aforesaid be deemed to be the undertakers for all the purposes of the Provisional Order or Special or other Order the powers of which are so transferred Provided that—

Transfer of undertakings of local authorities and others to Company.

(a) In the case of any such Provisional Order granted prior to the year nineteen hundred the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 shall from and after such transfer be

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deemed to have been incorporated with such Order and shall control and supersede such of the provisions of that Order as are at variance or inconsistent therewith;

- (b) In the event of any such undertaking being acquired by the Company under this section the provisions of the principal Acts shall subject to any modification of those Acts made by any such Order apply to that undertaking and when the undertakers are a local authority such undertaking shall be deemed to be subject to the provisions of section 2 of the Electric Lighting Act 1888:

Provided that the periods at which the local authority may under the provisions of the said section re-purchase or purchase such undertaking or so much thereof as is within their jurisdiction shall be reckoned from the date of the acquisition thereof by the Company;

- (c) None of the provisions of any such Order or of the principal Acts shall extend to authorise the purchase or re-purchase by any local authority of any generating station or other works of the Company which are not exclusively used or required for the purposes of supplying electricity under such Order within the area defined by such Order;
- (d) The powers conferred by this section may be exercised in respect of part only of any such undertaking or part only of any such powers rights authorities and privileges as aforesaid.

(2) The consideration payable by the Company in respect of the transfer to them of any such undertaking powers rights authorities and privileges or part thereof may if the undertakers transferring the same and the Company so agree be discharged wholly or in part by the allotment to such undertakers of fully paid-up shares or stock of the Company or of debentures or debenture stock and all shares or stock issued for the purposes of this section shall for all purposes be deemed to be fully paid up and any such undertakers may accept hold and dispose of such shares stock debentures or debenture stock.

(3) References in this section to a Provisional Order or a Special Order shall be deemed to include references to any Act or Acts of Parliament relating to the undertaking or powers rights authorities and privileges to be transferred. A.D. 1930.
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(4) Any capital moneys received by any local authority in respect of any transfer under this section shall be applied by such authority in manner provided by subsection (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

28.—(1) A notice to the Company from a consumer for the discontinuance of a supply of electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and left with or sent by post to the Company or be given by the consumer personally at an office of the Company. Notice to discontinue supply of electricity.

(2) Notice of the effect of this section shall be endorsed upon any demand note for charges for electricity.

29. The Company shall not under the powers of the principal Acts or of this Act construct on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily. Works below high-water mark not to be constructed without consent of Board of Trade.

30.—(1) Nothing in the sections of this Act of which the marginal notes are “Bulk supplies” and “Transfer of undertakings of local authorities and others Compensation for deprivation of employment.

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A.D. 1930. — to Company ” shall prejudice or affect any right or interest of any officer or servant of any authorised undertakers under the provisions of section 15 of the Electricity (Supply) Act 1926 and the enactments and schedule therein referred to and the said provisions shall extend and apply to any officer or servant of any authorised undertakers affected by the acquisition of or closing (permanent or temporary) or alteration in the working or use of a generating station or by the acquisition of a main transmission line or any part thereof under or in consequence of any contract or agreement entered into by the Company under the provisions of this Act with any local authority company or person and the provisions of the said section 15 and the enactments and schedule therein referred to shall apply and have effect as if such closing or acquisition were a closing or acquisition under or in consequence of the said Act of 1926 and such alteration were a restriction imposed by or under a scheme under that Act.

(2) For the purpose of this section the expression “ authorised undertakers ” means any local authority company body or person authorised by Act of Parliament or by Provisional Order or Special or other Order to produce or supply electricity.

As to re-
purchase
by council.

31. Notwithstanding the provisions of sections 2 and 3 of the Electric Lighting Act 1888 the council shall not exercise their powers thereunder except upon the terms of paying to the Company the fair market value as a going concern of so much of the undertaking as is within the urban district of Sidmouth (as from time to time constituted) including all lands buildings works materials and plant within such urban district suitable to and used by the Company for the purposes of the undertaking therein due regard being had to the goodwill of and to the profits which might have been made from the undertaking and to any loss occasioned by severance.

Reference to
arbitration.

32. Where under this Act any question or dispute is to be referred to arbitration then unless other provision is made the reference shall be to an arbitrator agreed on between the parties or failing agreement appointed by the Minister of Transport.

Recovery of
penalties
&c.

33. Save as is otherwise by this Act expressly provided all offences against any Act or Order from time

to time relating to the undertaking and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner : A.D. 1930.

Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

34. Proceedings for the recovery of any demand made under the authority of any Act or Order from time to time relating to the undertaking or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

35.—(1) The Company shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily. Copy of Act to be registered.

(2) There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1929 on registration of any document other than the memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

36. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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The SCHEDULES referred to in the
foregoing Act.

THE FIRST SCHEDULE.

Stamp



AN AGREEMENT made the nineteenth day of November one thousand nine hundred and twenty-nine between THE SIDMOUTH URBAN DISTRICT COUNCIL (hereinafter called "the Council") of the first part EAST DEVON ELECTRICITY COMPANY LIMITED whose registered office is situated at 47 Parliament Street Westminster S.W.1 (hereinafter called "the Company") of the second part and WHITEHALL SECURITIES CORPORATION LIMITED whose registered office is also situate at 47 Parliament Street aforesaid (hereinafter called "the Corporation") of the third part.

WHEREAS under and by virtue of the Sidmouth Urban District Council Act 1912 the Council being the local authority for the purpose of the Electricity (Supply) Acts 1882 to 1928 acquired the control (inter alia) of the supply of electricity for the urban district of Sidmouth and the undertaking formerly carried on by the Sidmouth Gas and Electricity Company for the purpose of such supply became vested in the Council and the Council was thereby constituted the undertakers for the purposes of the Electricity (Supply) Acts 1882 to 1928 :

And whereas the Council applied for and obtained from the Electricity Commissioners under the Electricity (Supply) Acts 1882 to 1928 and confirmed by the Minister of Transport under the Electricity (Supply) Act 1919 a Special Order (cited as the Sidmouth Electricity Extension Special Order 1927) for the supply of electricity for the purposes of the Sidmouth Urban District Council Act 1912 within the area described in the First Schedule to the said Special Order which said area is more particularly delineated upon the map deposited at the office of the Electricity Commissioners by the Council and signed by the secretary to the Electricity Commissioners and such Special Order (hereinafter referred to as "the Order") was approved by a resolution passed by the House of Lords on the fifth day of December one thousand nine hundred and twenty-seven and by a resolution passed by the House of Commons on the fourteenth day of December one thousand nine hundred and twenty-seven and the Council are the undertakers for the purposes of the Order :

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And whereas the Council have agreed to sell and the Company have agreed to purchase (subject to the requisite parliamentary sanction) as and from the first day of July one thousand nine hundred and twenty-nine the electricity undertakings of the Council authorised by the Sidmouth Urban District Council Act 1912 and the Order (hereinafter collectively referred to as "the said Act and Order") upon the terms and at the price hereinafter mentioned and the Corporation has agreed to join in this agreement for the purpose of guaranteeing its due performance by the Company as hereinafter set out.

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Now it is hereby agreed as follows :—

1. This agreement (except as hereinafter provided) is made conditionally on the requisite sanction being obtained from Parliament by an authorising or confirming Act (hereinafter referred to as "the enabling Act") and this agreement shall if Parliament think fit be scheduled to and confirmed and made binding on both parties hereto by the enabling Act.

2. Subject as in the preceding clause mentioned the Council agree to transfer and the Company agrees to take over as from the first day of July one thousand nine hundred and twenty-nine the electricity undertaking of the Council authorised by the said Act and Order or either of them and the Electricity (Supply) Acts 1882 to 1928 and all the rights powers and privileges and easements conferred upon the Council by the said Act and Order and now or at the date of transfer held by them the said rights powers privileges and easements to be held by the Company its successors and assigns as fully and effectually as if the said Act and Order had both been granted in the first instance to the Company. The undertaking shall be deemed to include so much of the land reserved by the Sidmouth Urban District Council Act 1912 for electricity purposes as is not now used for the purposes of the Council's gas undertaking which said land so included in this agreement for sale is for the purpose of identification only delineated on the plan annexed hereto and thereon coloured green. The Council shall deduce a proper title to the real property and the general conditions of 1925 shall apply.

3. The Council shall also sell and the Company shall purchase all buildings plant engines generators machinery apparatus battery street lamps standards and fittings works mains service lines instruments and meters laid placed or constructed or to be laid placed or constructed by the Council within the area of supply defined in the said Act and Order for the purposes of the electricity undertaking of the Council and the full benefit of all proceedings contracts or engagements to which the Council are or may be entitled in connection with the said undertakings and all serviceable stocks and stores and all money received or due or becoming due to the Council for supplies of electric current

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A.D. 1930. — or fittings to customers or others after the said first day of July one thousand nine hundred and twenty-nine (including such sums as represent moneys paid to the Council in advance in respect of any period after the thirtieth day of June one thousand nine hundred and twenty-nine and all deposits of money made with the Council to secure the observance of consumers' contracts) with full power in the name of the Council or otherwise to enforce such rights sue upon such contracts and recover such moneys as aforesaid.

4. The consideration for the transfer and sale shall be the sum of thirty-five thousand three hundred and seventy-two pounds seventeen shillings and nine pence and such consideration shall be paid by the Company to the Council on the date of transfer together with interest thereon from first day of July one thousand nine hundred and twenty-nine until payment at the rate of six per cent. per annum.

5. The Council shall pay and discharge all moneys owing by them on both capital and revenue account in connection with their electricity undertaking up to the thirtieth day of June one thousand nine hundred and twenty-nine and collect and receive for their own use all moneys owing to them in connection with such undertakings up to that date and also retain any moneys at bank at that date either on capital or revenue account (other than such sums as represent moneys paid to the Council in advance in respect of any period after that date and other than any deposits of money made with the Council to secure the observance of consumers' contracts).

6. As from the said thirtieth day of June one thousand nine hundred and twenty-nine until the completion of the purchase the Council shall work and shall be deemed to have worked their undertaking for the benefit and at the risk and expense of the Company and if and whenever the Council shall be required under their statutory obligations to commence to work their undertaking in the area scheduled in the said Order they shall work the same until the completion of the purchase for the benefit and at the risk and expense of the Company. The working of the said undertaking shall be carried on by the Council in a proper and efficient manner and in the ordinary and regular course of business and in accordance with the obligations imposed upon the Council by the hereinbefore recited Act and Order and the Council shall continue to keep proper accounts which shall be produced to the Company or any person or persons authorised by it for inspection and audit whenever reasonably required by it or him and subject to the proviso hereinafter contained may expend on capital account such sums as may be necessary for the construction completion and working of their undertaking and for the reasonable extension thereof in order to enable the

Council to carry out their statutory obligations or properly conduct work and carry on their undertaking The Council shall until completion of the sale duly take all such steps and proceedings at the expense of the Company as may be requisite to recover any debts or sums of money which may become payable to the Council in connection with the said undertaking : A.D. 1930.
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Provided always that the Council shall not after the date hereof make any expenditure on capital account beyond expenditure to which they are already committed or such as shall be in the ordinary course of the maintenance of the works and the proper conduct of the undertaking or enter into any new contracts for the construction of works without first giving to the Company notice in writing of their intention so to do and furnishing the Company with plans and particulars of the proposed works and contract and if within fourteen days after the receipt of such notice the Company shall intimate in writing to the Council that they object to such expenditure or contract the question whether the same shall be made or entered into shall forthwith be referred for decision to the President for the time being of the Institution of Electrical Engineers or some person appointed by him and such decision shall be given after hearing the engineers of the Council and the Company respectively but without counsel or witnesses and shall not be subject to appeal.

7. During the period between the date of this agreement and the date of actual completion the Council and the Company shall comply with the following conditions as to the manner in which the said undertaking shall be carried on :—

- (i) The Council shall insure and keep insured the generating station and works against fire and accidents with a substantial assurance company in such sum and by means of such policies of insurance as may be required by the Company and shall if required by the Company apply any moneys received under such policies in making good any damage caused by fire or accident :
- (ii) The Council shall not make any reduction in the rates of charge for electricity or for the hire of meters or for street lighting without the previous consent in writing of the Company which consent shall not be unreasonably withheld :
- (iii) The Council shall not at any time without the previous consent in writing of the Company which consent shall not be unreasonably withheld enter into any special contracts whereby obligations or liabilities are or might be imposed upon the Council (other than the ordinary contracts with consumers) or do or knowingly suffer any act or thing whereby the said undertaking can be charged or prejudicially affected :

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A.D. 1930.

(iv) The Council shall at any time after the date of this agreement furnish to the Company such plans as they may have of the generating station works mains and services comprised in the said undertaking together with such particulars as may be reasonably required by the Company of all buildings plant engines generators machinery apparatus battery street lamps standards and fittings works mains service lines instruments and meters comprised in the said undertaking.

8. The purchase of the undertaking and property hereby agreed to be sold shall be completed and the purchase money paid on a date (hereinafter referred to as "the date of transfer") to be agreed upon between the parties such date to be within a period of two months from the date on which the Royal Assent shall be given to the enabling Act to authorise the carrying into effect of this agreement and if from any cause other than the neglect or default of the Council the said purchase shall not be completed within the said period the Company shall pay to the Council interest on the purchase money at the rate of six pounds per cent. per annum from the expiration of such period until completion.

9. The accounts of the Council relative to the said undertaking shall within three months from the date of completion be made up by the Council (1) As from the first day of April one thousand nine hundred and twenty-nine (up to which date the accounts of the Council have already been made up and audited by the Local Government auditor) up to the said thirtieth day of June one thousand nine hundred and twenty-nine and (2) As from the thirtieth day of June one thousand nine hundred and twenty-nine up to the date of completion and such accounts shall be open to inspection and subject to audit by any accountant or other person appointed by the Company and if after providing for all debts and liabilities on capital and revenue account incurred since the thirtieth day of June one thousand nine hundred and twenty-nine such accounts show a profit as between the thirtieth day of June one thousand nine hundred and twenty-nine and the date of completion such profit shall forthwith be paid to the Company by the Council but if such accounts show a loss then such loss shall forthwith be paid to the Council by the Company.

10. All plans maps diagrams records books of account and of reference to customers of the said undertaking and including all books registers and forms embodying or relating to meter records and customers' accounts and all log books and technical records shall be delivered by the Council to the Company on possession being given of the said hereditaments pursuant to the provisions in that behalf hereinbefore contained and the Company shall thereafter be entitled to the custody thereof

and to the use thereof for the purpose of carrying on the said undertaking Provided that the Council for a period of five years from the completion of the purchase shall have free access at all reasonable times to such of the said books and documents as show or relate to the outstanding book debts and credits of the Council not included in the sale under this agreement. A.D. 1930.
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11. The costs charges and expenses of and incidental to the preparation execution and confirmation of this agreement and of the conveyance and transfer of the undertaking of the Council to the Company shall be calculated on the full price paid by the Company under clause 4 hereof according to the scale fixed by the Solicitors' Remuneration Act 1881 or any amendment thereof and shall be paid by the Company to the Council and in addition the costs charges and expenses properly incurred by the Council or jointly by the parties hereto for or in connection with the obtaining of the enabling Act shall be borne and paid by the Company In the event of this agreement becoming void under clause 18 hereof any costs charges expenses and stamp duties incurred by either party for or in connection with this agreement or the promotion of the said enabling Act or otherwise howsoever in connection with the transfer shall be defrayed by the Company.

12. The Company shall supply on its usual terms and conditions all energy required by the Council for power purposes within the distance of seventy-five yards from the Company's distributing mains at a price not exceeding two pence half-penny per Board of Trade unit.

13. Unless the Council agree otherwise the price to be charged for a supply of energy by the Company to all consumers (other than the Council for the supply of public lamps and for power purposes) shall not exceed nine pence per Board of Trade unit but subject to the following provisos :—

- (a) The statutory minimum prices which the Council at the date hereof are authorised to charge may be maintained :
- (b) Unless the Council agree otherwise no consumer at present supplied with energy by the Council shall by virtue of the provisions of this clause or otherwise be charged or liable to pay for a supply of energy for either lighting or power purposes at a price per unit exceeding that paid by him or them at thirtieth day of June one thousand nine hundred and twenty-nine according to consumption after making allowance in calculating such price per unit for (1) the rates of discount for prompt payment in force at that date and (2) the reduction in and adjustment of the rate of charge to which consumers of over two thousand units per annum were then entitled.

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14. If and so far as the execution of any works will involve the breaking up or interfering with any street or public bridge the Company shall serve a notice upon the Council describing the proposed work together with a plan of work showing the position of such proposed works and the manner in which such street or bridge is to be interfered with and the Council may subject to any requirements of the Postmaster-General or of the Minister of Transport require such amendments to be made on the plan as are reasonably necessary and the works shall be carried out accordingly.

15. It is hereby agreed between the parties that no further distributing mains except such as may be attached to poles or standards or house bolts already fixed at the date of transfer shall be placed above ground in the streets or roads specified in the schedule hereto or any part thereof respectively but the Council shall not object to distributing mains being placed above ground elsewhere.

16. The Council shall not after the date hereof permit any person firm or company to erect or place any electric wires under or over any street or road and the Council shall as soon hereafter as it has power to do so revoke any such permission heretofore granted.

17. The Company will in the forthcoming session of Parliament promote a Bill to confirm this agreement or otherwise to give effect to the provisions hereof and to confer upon the Council and the Company respectively all powers necessary to carry the same into effect and to enable the Company to work manage and improve the undertaking of the Council. Such Bill shall contain such provisions as the Company may reasonably require but otherwise shall not make any material alteration in the said Act and Order and the Council will by appearing in support of the Bill whenever the same shall be under the consideration of any committee or officer of either House of Parliament by petitioning in support of the said Bill from time to time when so required by the Company and by all other means in their power assist the Company to promote and secure the passing into law of the said Bill. The question whether any alteration made is material or not shall if disputed be decided by arbitration in manner hereinafter provided.

18. In the event either of the enabling Act not being granted within one year from the thirty-first day of August one thousand nine hundred and twenty-nine or of the said Bill at any time before the same shall have passed into law as the said enabling Act failing to contain such provisions as the Company may reasonably require or making any such material alterations as mentioned in the last preceding clause either party may give to the other party notice in writing of intention to withdraw from this agreement whereupon the agreement shall become void

except for the purposes of clause 11 and of any then pending arbitration under this agreement. A.D. 1930.

19. The Company shall duly and effectually perform all the obligations imposed upon them by this agreement or as the undertakers by the Act and Order or by any regulations made by the Minister of Transport and the Act or Order.

20. If any dispute shall arise between the parties hereto with reference to the true construction of this agreement or with reference to anything to be done or otherwise in relation to this agreement such dispute shall be referred to a single arbitrator to be appointed by the President of the Institution of Electrical Engineers and the provisions of the Arbitration Act 1889 or any statutory modification or re-enactment thereof for the time being in force shall apply to such reference and arbitration and to this agreement as if it were a submission to arbitration under that Act.

21. In consideration of the agreement by the Council hereinbefore contained the Corporation agrees with the Council that in the event of the Company failing to duly fulfil the agreements on their part hereinbefore contained so far as the same relates to the promotion of the necessary Bill for the purchase of the undertaking of the Council the payment of the purchase price and all the charges and expenses of the Council in connection with such promotion and the transfer of the undertaking to the Company they the Corporation will at their own expense in all such matters and things duly and faithfully fulfil such agreement and undertaking in precisely the same way as if this agreement had been entered into by the Council with the Corporation instead of with the Company And will indemnify the Council against any loss that they may sustain by reason of such non-performance by the Company of their agreement.

In witness whereof the said parties to these presents have hereunto caused their common seals to be affixed the day and year before written.

SCHEDULE hereto.

Esplanade.
Fore Street.
New Street.
Old Fore Street.
High Street.
Vicarage Road.
Temple Street.
Station Road.

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A.D. 1930.

—
The common seal of the urban district council
of Sidmouth was hereunto affixed in the
presence of

L.S.

E. MACDERMID Chairman.
P. H. MICHELMORE Clerk.

The common seal of East Devon Electricity
Company Limited was affixed hereto in the
presence of

L.S.

J. LISTER WALSH Director.
J. S. EVERNDEN Secretary.

The common seal of Whitehall Securities Corporation
Limited was affixed hereto in the presence of

L.S.

J. H. MacDONALD Directors.
J. LISTER WALSH Secretary.

THE SECOND SCHEDULE.

THIS DEED is made the _____ day of
_____ one thousand nine hundred and
thirty between THE COUNCIL OF THE URBAN DIS-
TRICT OF SIDMOUTH in the county of Devon (herein-
after referred to as "the Vendors") of the one part
and THE EAST DEVON ELECTRICITY COMPANY
LIMITED whose registered office is situate at 47
Parliament Street in the city of Westminster (herein-
after referred to as "the Purchasers") of the other
part :

Whereas by the Sidmouth Electricity Act 1930 an agreement
for the transfer of the electricity undertaking of the Vendors to
the Purchasers was confirmed and made binding upon the parties
thereto :

Now this deed witnesseth that in pursuance of and subject
to the provisions of the said Act and the agreement scheduled

thereto and for the consideration mentioned in the agreement the Vendors hereby grant convey and assign to the Purchasers the electricity undertaking of the Vendors and the property and assets appurtenant thereto To hold the same unto the Purchasers and the Purchasers do hereby accept the same accordingly : A.D. 1930.
—

In witness whereof the parties hereto have hereunto affixed their respective common seals the day and year first above written.

The common seal of the Sidmouth Urban District }
Council was hereunto affixed in the presence of }

The common seal of the East Devon Electricity }
Company Limited was hereunto affixed in the }
presence of }

THE THIRD SCHEDULE.

A piece of land situate in the urban district of Sidmouth in the county of Devon containing by admeasurement 720 square yards or thereabouts bounded on the north by land and premises belonging or reputed to belong to and in the occupation of the Council on the east by Ham Lane on the south by York Street and on the west by Sid Road.

THE FOURTH SCHEDULE.

In this schedule—

The expression “ unit ” means the electricity contained in a current of one thousand amperes flowing under an electro-motive force of one volt during one hour.

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A.D. 1930.

SECTION I.

Where the Company charge any consumer by the actual amount of energy supplied to him—

The rate of tenpence per unit Provided that the Company may make the following minimum charges (exclusive of meter rental) if energy to the value of the following amounts is not actually consumed (that is to say) :—

(a) In respect of the quarters ending thirty-first March and thirty-first December twelve shillings and sixpence ;

(b) In respect of the quarters ending thirtieth June and thirtieth September eight shillings and fourpence.

SECTION II.

Where the Company charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in Section I. of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Company under the regulations of the Electricity Commissioners.

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